

13.	26PR0159	IN THE MATTER OF WILLIAM CHARLES KREISL
HEARING – DETERMINING TITLE TO REAL PROPERTY		

On June 1, 2026, Petitioners, William Charles Kreisl and Stefan Kreisl (collectively “Petitioners”), filed a Petition for Order Determining Title to Real Property and Order Authorizing Real Property to be Conveyed to Trust. A Notice of Hearing was filed on June 2, 2026. No opposition has been filed.

The Petition requests the following relief:

1. The Wells Fargo Individual Brokerage account be re-titled to reflect ownership by the Trust: William Charles Kreisl and Stefan Kreisl, Co-Trustees of The William Kreisl Living Revocable Trust, dated January 8, 2026;
2. That the First Northern Bank Business Checking Account be re-titled to reflect ownership by the Trust: William Charles Kreisl and Stefan Kreisl, Co-Trustees of The William Kreisl Living Revocable Trust, dated January 8, 2026;
3. That the Schools First Federal Credit Union checking account be re-titled to reflect ownership by the Trust: William Charles Kreisl and Stefan Kreisl, Co-Trustees of The William Kreisl Living Revocable Trust, dated January 8, 2026;
4. That that Schools First Federal Credit Union savings account be re-titled to reflect ownership by the Trust: William Charles Kreisl and Stefan Kreisl, Co-Trustees of The William Kreisl Living Revocable Trust, January 8, 2026; and
5. Notice of hearing has been given as required by law.

On January 8, 2026, William Kreisel (“Settlor”), created The William Kreisl Living Revocable Trust (the “Trust”). Settlor died on February 15, 2026. Petitioners accepted trusteeship upon Settlor’s death and are acting as Co-Successor Trustees.

Schedule A of the Trust lists assets which Settlor intended to be owned by the Trust, specifically: Wells Fargo checking, savings, and money market accounts; First National Bank business and personal checking accounts; and Schools First Federal Credit Union checking account.

Settlor does not hold any of his assets at First National Bank but rather First Northern Bank. Petitioners believe that the inclusion of First National Bank on Schedule A was a typographical error that was inadvertently overlooked due to the urgency of ensuring the Trust and estate plan were signed and notarized before Settlor passed away.

Petitioners further assert that Settlor listed Oakstone Construction, Inc. as a Trust asset, which owns the First Northern Bank (i.e., First National Bank) account, which demonstrates the Settlor’s intent to include the First Northern Bank accounts in Trust, as well as the typographical error.

The Assignment of Business Interest states:

WITHOUT CONSIDERATION, the undersigned does hereby assign, **transfer and set over to WILLIAM KREISL, as Trustee of THE WILLIAM KREISL LIVING REVOCABLE TRUST, U/A dated January 8, 2026, all of my right, title and interest in the business entity known as OAKSTONE CONSTRUCTION, INC, 4028 Yosemite Place, Placerville, California; and shall include, but not be limited to, the goodwill, accounts receivable, equipment, inventory, bank accounts and all other assets of the business of whatever manner, wherever located, and whenever acquired. The foregoing assignment and transfer shall apply even though "record" ownership or title, in some instances, may, presently or in the future, be registered in my individual name, in which event such record ownership shall hereafter be deemed held in trust even though such trusteeship remains undisclosed.**
(emphasis added)

Despite Settlor specifying Wells Fargo checking, savings, and money market accounts on Schedule A, Settlor also owned a Wells Fargo Individual Brokerage Account held in his individual name which was not specifically referenced. Additionally, Settlor owned a Schools First Federal Credit Union Savings Account which was not included on Schedule A despite listing a Schools First Federal Credit Union Checking Account.

Petitioners assert that despite these accounts not being explicitly identified on Schedule A, Settlor intended the accounts be included as Trust assets based upon the Declaration of Trust, the Will, the Trust itself, and the Declarations of Charles Kreisl and Stefan Kreisl.

The Declaration of Trust provides:

I, WILLIAM KREISL, hereby declare that **all assets of every kind and description and wheresoever situated which I presently own or hereafter acquire** (regardless of the means by which acquired and/or the record title in which held: including, by way of illustration and not limitation, all real property, investments, **bank accounts, etc.), other than any Individual Retirement Accounts or other type of plan which is tax deferred under the Internal Revenue Code of 1986, as amended, are transferred to and the same shall be owned by: THE WILLIAM KREISL LIVING REVOCABLE TRUST**, being a revocable living trust, which exists under a certain Trust Agreement created by concurrently herewith. me The foregoing declaration and transfer shall apply even though "record" ownership or title, in some instances, may, presently or in the future, be registered in my respective individual name, in which event such record ownership shall hereafter be deemed held in trust even though such trusteeship remains undisclosed. **This declaration and transfer shall constitute an intention to transfer the above-listed assets to the above-mentioned trust for purposes of the ruling in Estate of**

Heggstad (1993), 16 Cal.App.4th 943. This declaration may be terminated by me by written notice to the Trustee of the above-mentioned trust. (emphasis added)

Article 3, paragraph 3.B of Settlor's Will instructs:

Gift to Trust. **I give, devise and bequeath the remainder of my estate to the then-acting Trustee or Trustees of the above-mentioned Trust Agreement, together with any additions or amendments thereto, to be added to the principal of that Trust and to be held, administered and distributed under the Trust Agreement and any amendments to such Trust Agreement.** I direct that such Trust Agreement shall not be administered under court supervision, control or accounting, and the Trustee thereof shall not be required to give bond in such capacity. (emphasis added)

Probate Code § 850 permits a trustee who has a claim to property, the title to or possession of which is held by another, to file a petition requesting that the court make an order pursuant to Probate Code § 856 authorizing and directing the person having title to or possession of real property to execute a conveyance or transfer to a person entitled thereto, or granting other appropriate relief.

Probate Code § 851 requires the Petitioner to serve notice of the hearing and a copy of the Petition at least 30 days prior to the hearing to each person claiming an interest in or having title to or possession of the property. When the matter concerns a decedent estate, notice shall also be given to any heir or devisee whose interest may be affected by the Petition in accordance with Probate Code § 1200.

Probate Code § 857 provides that in the event that the court issues such an Order:

- (a) The order is prima facie evidence of the correctness of the proceedings and of the authority of the personal representative or other fiduciary or other person to make the conveyance or transfer.
- (b) After entry of an order that the personal representative, other fiduciary, or other person execute a conveyance or transfer, the person entitled thereunder has the right to the possession of the property, and the right to hold the property, according to the terms of the order as if the property had been conveyed or transferred in accordance with the terms of the order.

Notice of the hearing and a copy of the Petition were mailed at least 30 days prior to the hearing, to each person claiming an interest in or having title to or possession of the property, as well as any heir or devisee whose interest may be affected by the Petition.

July 20, 2026
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Probate Tentative Rulings

Pursuant to Probate Code §850 and *Estate of Heggstad* (1993) 16 Cal.App. 4th 943, 947-950, the Court finds sufficient evidence that decedent intended the above-mentioned assets be part of the Trust.

TENTATIVE RULING #13:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.